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Civil Disobedience

Henry David Thoreau's 'Civil Disobedience' was published in 1862, four years after his premature death. The essay was, however, an edited version of a lecture he delivered in 1848 in the village of Concord, in Massachusetts. Thoreau delivered the lecture with the stated purpose of explaining an act of civil disobedience he had committed not long before: after years of deliberately avoiding a small poll tax, he decided that he would rather be taken to jail than pay the amount he owed. In a sense, though, the lecture was the culmination of Thoreau's beliefs and concerns regarding the relationship between morality and governance: an apt subject, given the backdrop of slavery and the rising abolition movement. Contemporaneous events--like abolition and the Mexican-American war--aside, Thoreau's arguments were most heavily influenced by the writings of the moral philosophers that preceded him; his own views were partially modeled after arguments made by the likes of John Locke and his teacher, Ralph Waldo Emerson, and categorically disagreed with the utilitarian perspective of William Paley. It is with all this in his vision that Thoreau makes his case.

Thoreau's assertion, in summation, was that one must act not for one's own worldly benefit, but for their moral conscience; to pursue justice over order, regardless of whether such actions went against the laws of man, and no matter the personal cost. Indeed, Thoreau had

himself put his actions where his convictions lay, albeit in an ultimately inconsequential way; when he was confronted about his unpaid tax, he chose to be taken to jail-- not for the lack of means to pay, but on principle, stating that he “Does not wish to be regarded as a member of any incorporated society which I have not joined” (Thoreau 49). Thoreau distancing himself from the government was not simply stubborn, miserly behavior: it was the result of Thoreau’s belief that the government acted on the behalf of stability and efficacy rather than any sort of moral code, for though morality lay at the heart of Thoreau’s argument, it was contextualized in ‘Civil Disobedience’ by its relationship to government. Thoreau explained how he believed that government asked for allegiance that was due only to one’s moral compass, and made two major claims about it; first, he noted that the government was shaped by a few powerful individuals and was not, therefore, a reflection of the will of the people. Secondly, and perhaps more importantly, Thoreau argued that the will of the majority was not the same as the morally just decision; more often than not, people voted with their own problems and desires in mind, rather than their moral conscience. It is, therefore, unsurprising that ‘Civil Disobedience’ called for virtuous action not through deeper political involvement, but by no involvement at all in any morally repugnant system; Thoreau saw uninvolved--at the bare minimum-- as the responsibility of anyone opposed to any concept on moral grounds. It was clear to him that any ties to an unjust system would make one complicit in the actions of that system. Take, for example, Thoreau’s stance on abolition: He urged people to take a stance against slavery not in word nor vote, but in action; to remove themselves from any industry propped up by slaves; to end slavery not as a system, but as individuals, stating that “if one honest man... ceasing to hold slaves, were actually to withdraw from this copartnership... it would be the end of slavery in

America” (Thoreau 46). Therein lay the purpose of ‘Civil Disobedience’: to encourage conscientious action at an individual level, with the expectation that it would translate into change on a larger scale.

In making his case for moral responsibility, Thoreau also suggested a handful of hurdles that might have prevented one from making virtuous decisions, ranging from the economic to the philosophical. The most impactful of those arguments, however, was his criticism of the well-intentioned: he condemned the people who failed to look inward in discerning between right and wrong, and instead mistook law for justice; who forsook their morals when it was easier to simply submit to an authority; saying, ”Law never made men a whit more just; and, by means of their respect for it, even the well-disposed are daily made the agents on injustice”(Thoreau 38). Another point that Thoreau made was economic corruption: yet again, in this part of ‘Civil Disobedience’, he attacks the public’s tendency to embrace expediency over virtue, though in this case, he posits an explanation: having more to lose leaves one less willing to take drastic risks. Thoreau further explained that the fact that one had accumulated immense wealth was, in and of itself, telling of one’s moral disposition, saying, “Absolutely speaking, the more money, the less virtue; for money comes between man and his objects and obtains them for him; and it was certainly no great virtue to obtain it” (Thoreau 48). Finally, Thoreau tackled the philosophical argument to explain the root cause of systemic immorality: utilitarianism. Utilitarianism--the belief that the value of an object or action is determined only by its use or effect, according to Thoreau--is fundamentally opposed to putting moral conscience above order and productivity. In his view, treating the world like a balance sheet, the utilitarian perspective

was detrimentally relativistic in its approach to justice and cannot, therefore, account for inherent virtue of just actions, if those actions come at a great cost.

A recurring theme tied to Thoreau's criticism of utilitarianism in 'Civil Disobedience' is sacrifice. Indeed, Thoreau went as far as to say, "If I have unjustly wrested a plank from a drowning man, I must restore it to him though I drown myself" (Thoreau 40). It is clear then--both from that statement and 'Civil Disobedience' at large--that Thoreau believed that morality takes precedence over expedience no matter the outcome. One cannot, however, stress enough just how important the theme of sacrifice truly is to Thoreau's claims. Sacrifice -- alongside indifference--is, perhaps, what prevents society from change; from revolting against unfair practices. It is what one must be willing to do if they are to remove themselves from immoral systems. Most of all, it is what lulls us into the sense that we would be better off with the stability of the status quo. To Thoreau, however, one must either be willing to either sacrifice their comfort and order, or, by inaction, their immortal soul. That, perhaps, has been the greatest draw of Thoreau's work in the century-and-a-half since.

Works Cited

Thoreau, Henry David, and Bob Pepperman Taylor. *Civil Disobedience*. Broadview Press, 2016.